in lending on personal credit. "The lending money on a note," he said, "is not a breach of trust, without other cir-

507; only the lawful money of the United States is upheld by the United States Supreme Court; Horn *v.* Lockhart, 17 Wall. 570; McBurney *v.* Carson, 99 U. S. 567. It is not culpable to leave funds invested as they were by the testator; Miller *v.* Proctor, 20 Ohio St. 444; Bowker *v.* Pierce, 130 Mass. 262; Smith *v.* Smith, 4 Johns. Ch. 283; Murray *v.* Feinour, 2 Md. Ch. 418; but see Pray's App. 34 Pa. St. 100; Harvard College *v.* Amory, 9 Pick. 446; if trustees invest funds in real estate, taking the title in their own name, the *cestui que trust* may elect between the real estate and the money with interest; Eckford *v.* De Kay, 6 Paige, 565; Morton *v.* Adams, 1 Strob. Eq. 72; Roger's App. 11 Pa. St. 36; and the mortgagee cannot enforce his mortgage; Mathews *v.* Heyward, 2 S. C. 239. A direction to invest in productive real estate was fulfilled by the purchase of a dwelling house; Parsons *v.* Winslow, 16 Mass. 368; the trust property should not be mortgaged; Ryder *v.* Sisson, 7 R. I. 341.

The trustee must invest the trust funds within a reasonable time; Shipp *v.* Hettrick, 63 N. C. 329; Owen *v.* Peebles, 42 Ala. 338; Handly *v.* Snodgrass, 9 Leigh, 484; Schieffelin *v.* Stewart, 1 Johns. Ch. 620; a year has been held a reasonable time; Cogswell *v.* Cogswell, 2 Ed. Chan. 231; so have three months; Barney *v.* Saunders, 16 How. 543; and six months; Manning *v.* Manning, 1 Johns. Ch. 527; Frey *v.* Frey, 2 C. E. Green, 72; Armstrong *v.* Walker, 12 Gratt. 608; it depends somewhat upon the efforts made by the trustee and whether it is an investment or a reinvestment; Witmer's App. 87 Pa. St. 120; if a trustee does not separate a legacy from the estate he may be liable for interest; Fowler *v.* Colt, 25 N. J. Eq. 202.

A trustee should not mix trust funds with his own, but he may do so if the amount is small, in order to invest to advantage; Graver's App. 50 Pa. St. 189; if money is deposited in a bank in trustee's name rather than as a trust, he will be responsible for any loss in consequence; Lukens' App. 7 Watts & S. 48; Royer's App. 11 Pa. St. 36, Perry on Trusts, § 463, Jacot *v.* Emmett, 11 Paige, 142; De Peyster *v.* Clarkson, 2 Wend. 77; Kerr *v.* Laird, 27 Miss. 544, Mumford *v.* Murray, 6 Johns. Ch. 1; the *cestui que trust* has a claim on the trust funds on deposit in bank, and in case of mixed deposits, checks will be applied to deposits according to their priority, whether trust or individual funds, and any trust funds remaining are subject to the trust; School *v.* Kirwin, 25 Ill. 73; Morrison *v.* Kinstra, 55 Miss. 71; Kennedy *v.* Strong, 10 Johns. 289; trustees cannot call trust money employed in their business a loan to themselves; Townend *v.* Townend, 1 Giff. 201; or their firm, Kyle *v.* Barnett, 17 Ala. 306; the whole income of the fund belongs to the trust; Hook *v.* Dyer, 47 Mo. 214; if there is a mixture of funds in purchasing stocks the *cestui que trust* may select the best; Norris's App. 71 Pa. St. 106; trustees may take notes; Smith *v.* Smith, 4 Johns. Ch. 283; trustees should not change testator's securities unless for good reason; Ward *v.* Kitchen, 30 N. J. Eq. 31; if trustee does what is for best interest of the trust, his act may be afterwards ratified; Gray *v.* Lynch, 8 Gill. 405; where trustees exceed their authority and gain and afterwards lose, they are liable for the original fund with interest only; Baker *v.* Disbrow, 3 Redf. 348; they cannot change from real to personal estate without authority; Quick *v.* Fisher, 9 N. J. Eq. 802; the burden of proving it advantageous is on the trustee; Washington *v.* Emery, 4 Jones Eq. 32; courts will not grant a change from testator's direc-

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